

Contract No. _____

MEMORANDUM OF UNDERSTANDING

This Memorandum of Understanding (MOU) is by and between the City of Cheyenne, a municipal corporation existing under the laws of the State of Wyoming (City), located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and Climb Wyoming, located at 1709 Carey Avenue, Cheyenne, Wyoming 82001. The City and Climb Wyoming are collectively referred to as "Party" or "Parties." This MOU shall become effective upon the date of the last signature affixed hereto.

WHEREAS, Climb Wyoming is a statewide non-profit empowering low income, single moms by providing free training, mental health counseling and job placement in six (6) Wyoming communities including within the City of Cheyenne;

WHEREAS, Climb Wyoming is currently operating a program in Cheyenne to train CDL drivers in Cheyenne;

WHEREAS, the City is in need of individuals in possession of a valid Commercial Driver's License (CDL) to work for a variety of positions within the City; and,

WHEREAS, Climb Wyoming will provide the City with reimbursement for work performed by a Climb Wyoming participant including participant's entry level salary and/or gross wages, including paid time off and holiday pay for non-overtime hours (40 hours or less per week) for a period of twelve (12) weeks.

NOW, THEREFORE, the Parties agree as follows:

1. Purpose. The purpose of this MOU is for the City and Climb Wyoming to work together to provide employment opportunities for Climb Wyoming participants within the City of Cheyenne.

2. Term. This MOU shall commence on the last date executed by the duly authorized representatives of the Parties to this MOU and shall remain in full force and effect until April 15, 2025, for a period of two (2) years.

3. Payments. Climb Wyoming agrees to provide payment to the City of Cheyenne pursuant to the terms and conditions of the Work Experience Agreement for each participant, a copy of which is attached and incorporated herein as Exhibit A.

4. Responsibilities of Climb Wyoming. Climb Wyoming shall:

- a. Identify work participants appropriate for employment within the City.
- b. Provide training for work participants including job placement and support within the City.
- c. Reimburse the City for work performed under this agreement based upon the actual cost incurred by the work experience participant's entry level salary and/or gross wages, including paid time off and holiday pay for non-overtime hours (40 hours or less per week) of the work experience participant, with the exception that no reimbursement of employer paid retirement costs shall be paid from funds covered by the Work Experience Agreement.
- d. Provide support to the participant including by conducting two (2) Work Experience Performance Evaluations during the participant's initial employment within the City.

5. Responsibilities of the City. The City shall:

- a. The City shall provide employment and other services specified in, and consistent with, this Work Experience Agreement (Exhibit A).
- b. Provide documentation of amounts paid to participant.

c. Coordinate with Climb Wyoming with regard to Work Experience Performance Evaluations.

7. General Provisions.

a. Amendments. Any changes, modifications, revisions, or amendments to this MOU which are mutually agreed upon by the Parties to this MOU shall be incorporated by written instrument, executed and signed by all Parties to this MOU.

b. Assignment. No Party may assign or transfer the responsibilities or agreements made herein without the prior written consent of the non-assigning Party, which approval shall not be unreasonably withheld.

c. Applicable Law. The construction, interpretation, and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over this MOU and the Parties, and the venue shall be in the First Judicial District, Laramie County, Wyoming.

d. Compliance with Laws. The Parties shall keep informed of and comply with all applicable federal, state, and local laws and regulations in the performance of this MOU.

e. Indemnification/Hold Harmless. The Parties agree to indemnify, hold harmless, and defend the other from and against any and all liabilities, claims, penalties, forfeitures, and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result the performance of their duties, including death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations, or orders.

f. Nondiscrimination. The Parties shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act, Wyo. Stat. § 27-9-105, *et seq.*, the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy, or qualifying disability in connection with the performance under this MOU.

g. Governmental Immunity. The City does not waive governmental immunity by entering into this MOU and specifically retains all immunities and defenses available to it as a governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other applicable laws. Designation of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of governmental immunity.

h. Third-Party Beneficiary Rights. The Parties do not intend to create in any other individual or entity, the status of third-party beneficiary and this MOU shall not be construed so as to create such status. The rights, duties, and obligations contained in this MOU shall operate only between the Parties to this MOU and shall inure solely to the benefit of the Parties to this MOU. The provisions of this MOU are intended only to assist the Parties in determining and performing their obligations under this MOU. The Parties to this MOU intend and expressly agree that only parties signatory to this MOU shall have any legal or equitable right to seek to enforce this MOU, to seek any remedy arising out of a Party's performance or failure to perform any term or condition of this MOU, or to bring an action for the breach of this MOU.

i. Force Majeure. The performance of this MOU by the Parties shall be

subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the Parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this MOU. This MOU may be cancelled by any Party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other Party.

j. Severability. If any provision of this MOU is found to be invalid or unenforceable for any reason, the remaining provisions will continue to be valid and enforceable. If a court finds that any provision of this MOU is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision will be deemed to be written, construed, and enforced as so limited.

k. Notice. All notices arising out of or from the provisions of this MOU shall be in writing and given to the Party either by regular mail or delivery in person.

l. Termination. Any Party may terminate its participation in this MOU, with or without cause, by providing thirty (30) days written notice to the other Party.

m. Prior Approval. This MOU shall not be binding upon the Parties, no services shall be performed under the terms of this MOU, and no payments shall be made

until this MOU has been reduced to writing and approved by all necessary authorities.

n. Entirety of Contract. This MOU represents the entire and integrated agreement between the Parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.

8. Signatures. In witness whereof, the Parties to this MOU, through their duly authorized representatives, have executed this MOU on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this MOU.

City of Cheyenne

Date
(SEAL)
Attest:

By:

Patrick Collins, Mayor

Kristina F. Jones, City Clerk

Climb Wyoming

Date

By:

Title: